

26STCV03092 26STCV03092

County: los-angeles

Division: Civil Law and Motion

Department: 729

Hearing date: 2026-09-15

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Case Number: 26STCV03092 Hearing Date: September 15, 2026 Dept: 729

Superior

Court of California

County

of Los Angeles

DEPARTMENT 729

TENTATIVE

RULING

JAMES DEVON

JOHNSON,

vs.

SAMANTHA

FULLER.

Case No.: 26STCV03092

Hearing Date: September 15, 2026

Pro per Defendant Samantha Fuller's special
motion to strike Plaintiff James Devon Johnson's Complaint in its entirety is denied
in part and granted in part.

Pro per Defendant Samantha Fuller may

separately move for attorneys' fees and costs incurred on the instant anti-SLAPP motion, as applicable.

Pro per

Defendant Samantha Fuller ("Fuller") ("Defendant") moves for a special motion to strike Plaintiff James Devon Johnson's ("Johnson") ("Plaintiff") complaint ("Complaint") in its entirety. (Notice of Motion, PDF pgs. 1-2; C.C.P. §425.16.)[1] Defendant moves on the grounds that each cause of action arises from Defendant's exercise of the constitutional right of free speech in connection with a public issue or an issue of public interest, namely Defendant's December 10, 2025, statements warning other women about Plaintiff, and that Plaintiff cannot establish a probability of prevailing on any of his claims. (Notice of Motion, PDF pg. 1; C.C.P. §§425.16(e)(3)-(4).) Defendant also moves for fees and costs incurred on the instant anti-SLAPP motion. (Notice of Motion, PDF pg. 2; C.C.P. §425.16(c).)

Evidentiary Objections

Plaintiff's 8/5/26

evidentiary objections to the Declaration of Samantha Fuller ("Fuller") are sustained as to Nos. 1, 2, 3 [only as to the content of the letter], 4, 7, 8, 9, and 10 and overruled as to Nos. 5 and 6.

Request for Judicial Notice

Plaintiff's 8/5/26 request

for judicial notice of (1) The memorandum of the United States Army Criminal Investigation Laboratory, Department of the Army, dated 1 November 2024, reference CIDD-CIL-DDB (100A), subject "Expungement of James D. Johnson" (Decl. of Johnson, Exh. A); (2) The Evidence Disposal Authorization issued by the Regional Trial Counsel, Trial Services Organization, Legal Services Support Section West, Marine Corps Installations West, United States Marine Corps, digitally signed 15 April 2024, subject "Evidence Disposal Authorization for Case Control Numbers 07MAR22-INPE00092-6SMA and 17NOV22-MWPE-00596-8MMA" (Decl. of Johnson, Exh. B); and (3) The letter of the Assistant Chief of Staff, G-1, Marine Corps Installations West — Marine Corps Base, Camp Pendleton, dated 8 January 2024, responding to a request under the Freedom of Information Act, file number DON-USMC-MCIWEST-MCB CAMPEN-2024-42 (Decl. of Johnson, Exh. C) is granted, however the Court does not take judicial notice of the truth of the

matters asserted therein.

Background

Plaintiff filed his operative

Complaint on January 29, 2026, against Defendant for three causes of action:

(1) defamation (slander and libel); (2) trade libel; and (3) intentional

interference with prospective economic advantage. (See Complaint.) Plaintiff alleges he “owns and operates a

professionally managed, highly discreet talent coordination agency” (Complaint ¶1), and due to Defendant’s

Instagram post, Plaintiff has lost business from clients “seeking arrangements,”

including “a confirmed \$70,000 nude cocktail modeling event” (Complaint ¶11).

On June 5, 2026, Defendant filed

the instant anti-SLAPP motion. Plaintiff

filed his opposition on August 5, 2026. On September 8, 2026, Defendant filed

her reply.

Legal Standard

“Litigation of an anti-SLAPP

motion involves a two-step process. First, ‘the moving defendant bears the

burden of establishing that the challenged allegations or claims ‘aris[e] from’

protected activity in which the defendant has engaged.’ [Citation.] Second, for

each claim that does arise from protected activity, the plaintiff must show the

claim has “at least ‘minimal merit.’ [Citation.]” (Bonni v. St. Joseph Health System (2021) 11

Cal.5th 995, 1009, citations omitted.) To

separate communications which form the source of the dispute from those that

merely provide evidence of it, courts ask whether “the same dispute would

exist” if there were no pending threat of litigation. (Gotterba v. Travolta (2014) 228

Cal.App.4th 35, 42.)

As to the second step of the inquiry, a plaintiff

seeking to demonstrate the merit of the claim “may not rely solely on its

complaint, even if verified; instead, its proof must be made upon competent

admissible evidence.” (Sweetwater Union High School District v. Gilbane Building

Co. (2019) 6

Cal.5th 931, 940, citations omitted.)

A party opposing a special

motion to strike has the burden to “state [] and substantiate [] a legally

sufficient claim.” (Navellier v.

Sletten (2002) 29 Cal.4th 82, 88 & 93.) “Put another way, the [party] “must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the [party] is credited.” [Citations.]” (Id. at pgs. 88-89.) To that end, the party must present competent evidence, “that would be admissible at trial.” (HMS Capital, Inc. v. Lawyers Title Co.

(2004) 118 Cal.App.4th 204, 212.) “[D]eclarations

may not be based upon ‘information and belief’ [citation]” and documents submitted without the proper foundation will not be considered. (Id.)

The complaint, even if verified, is insufficient to carry the plaintiff’s shifted burden. (Roberts v. Los

Angeles County Bar Association (2003) 105 Cal.App.4th 604, 614; Karnazes v. Ares (2016) 244 Cal.App.4th 344, 354 [“pleadings do not constitute evidence”]; see also Burke, Anti-SLAPP Litigation (The Rutter Group, Civil Litigation Series 2018 §5:13) [“To satisfy prong two, the plaintiff must submit admissible evidence that if credited is sufficient to sustain a favorable judgment against the legal theories asserted by the defendant.”].)

Prong One: Arising from

Protected Activity

“A cause of action is subject

to a special motion to strike if the defendant shows that the cause of action arises from an act in furtherance of the defendant’s constitutional right of petition or free speech in connection with a public issue and the plaintiff fails to demonstrate a probability of prevailing on the claim. [Citations.]” (Digerati Holdings, LLC v. Young Money Entertainment, LLC (2011) 194 Cal.App.4th 873, 883.)

“An ‘act in furtherance of a

person’s right of petition or free speech under the United States or California Constitution in connection with a public issue’ is defined by statute to include ‘(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the

constitutional right of free speech in connection with a public issue or an issue of public interest.' [Citation.]

If the defendant shows that the cause of action arises from a statement described in clause (1) or (2) of section 425.16, subdivision (e), the defendant is not required to separately demonstrate that the statement was made in connection with a 'public issue.' [Citation.]" (Id.)

"A cause of action is one

'arising from' protected activity within the meaning of section 425.16, subdivision (b)(1) only if the defendant's act on which the cause of action is based was an act in furtherance of the defendant's constitutional right of petition or free speech in connection with a public issue. [Citation.] In deciding whether the 'arising from' requirement is satisfied, 'the court shall consider the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.' [(C.C.P. §425.16(b)(2).)]

Whether the 'arising from' requirement is satisfied depends on the 'gravamen or principal thrust' of the claim. [(Episcopal Church Cases (2009) 45 Cal.4th 467, 477, quoting *Martinez v. Metabolife International, Inc.* (2003) 113 Cal.App.4th 181, 193.)] A cause of action does not arise from protected activity for purposes of the anti-SLAPP statute if the protected activity is merely incidental to the cause of action. [(*Martinez*, 113 Cal.App.4th at pg. 188.)]" (*Digerati Holdings, LLC*, 194 Cal.App.4th at pgs. 883-884.) To show that a claim arises from protected activity under §425.16(b)(1), it is not sufficient to show that the claim "was filed after, or because of, protected activity, or when protected activity merely provides evidentiary support or context for the claim." (*Rand Resources, LLC v. City of Carson* (2019) 6 Cal.5th 610, 621.) "Rather, the protected activity must 'supply elements of the challenged claim.' [Citation.]" (Id., citations omitted.)

"At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage." (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396, emphasis added.)

Defendant argues Plaintiff's allegations in the Complaint arise from Defendant's speech in connection with a public issue or an issue of public interest.
(Motion, PDF pgs. 6-7.)

1. Defendant's Instagram Posts

a. The Challenged Allegations

The challenged allegations arise from Plaintiff's non-party ex-wife, Kayla Hatch's ("Kayla") and Amie Delphina Hatch aka Amy Hatch's ("Amie"), contact with Defendant, who is Plaintiff's former business partner. (See Complaint ¶¶2, 7-8.) Plaintiff alleges, "[i]n or around 2025, Kayla Hatch and her sister Amie Delphina Hatch contacted Defendant and conveyed false, defamatory statements about Plaintiff, including baseless criminal and misconduct allegations already disproven by official exoneration." (Complaint ¶7.) Plaintiff alleges Defendant then made statements on social media based on Kayla's and Amy's "baseless criminal and misconduct allegations." (Complaint ¶7.) The identified allegations are as follows:

Paragraph 9:

Relying on these false statements, Defendant published defamatory Instagram content on or about December 10, 2025 (attached as Exhibits A1 and A2), which remains public and continues to damage Plaintiff's business. The content includes explicit warnings such as "I am no longer associated with this man. Pls stay safe ladies" and "GIRLS PLS KEEP COMING FORWARD!!! WE ARE IN THIS TOGETHER!!!" (Exhibit A1), accompanied by Plaintiff's photograph. In addition, (Exhibit A2), another posts [sic], which includes false allegations of mass drugging and rape of Black women (with racial slurs), human trafficking, drug trafficking, and other serious misconduct.

The Court notes Plaintiff's filed Complaint does not attach any of the Exhibits referenced in the pleading. Therefore, the Court only rules on the above-quoted text.

b. Analysis

Defendant met her burden to demonstrate the conduct alleged in the Complaint arises from an "act in furtherance of a person's right of petition or free speech under the United

States or California Constitution in connection with a public issue.” (C.C.P. §§425.16(b), (e).)

Here, the alleged conduct

pertains to statements and writings “made in a place open to the public or a public forum in connection with an issue of public interest,” meeting the definition of protected conduct under C.C.P. §425.16(e)(3) and “any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest,” for protected conduct under C.C.P. §425.16(e)(4).

As a preliminary matter, a

website open to the public is a “public forum” or a place “open to the public” within the meaning of C.C.P. §425.16. (Barrett v. Rosenthal (2006) 40 Cal.4th 33, 41 n.4; Kronemyer v. Internet Movie Data Base, Inc. (2007) 150 Cal.App.4th 941, 950 [stating internet website a public forum where statements on website “accessible to anyone who chooses to visit the site”]; Wong v. Jing (2010) 189 Cal.App.4th 1354, 1367.) It is undisputed that Defendant’s alleged statements were made on the social media website, Instagram, which meets the definition of a public forum under the anti-SLAPP statute.

In order to determine whether

a statement is made in connection with an issue of public interest, “[f]irst, we ask what ‘public issue or [] issue of public interest’ the speech in question implicates—a question we answer by looking to the content of the speech. [Citation]. Second, we ask what functional relationship exists between the speech and the public conversation about some matter of public interest.” (FilmOn.com v.

DoubleVerify Inc. (2019) 7 Cal.5th 133, 149-150 [addressing protected activity under subdivision (e)(4)], emphasis added; see also Briggs v. Eden Council for Hope & Opportunity (1999) 19 Cal.4th 1106, 1118 [applying similar analysis to subdivisions (e)(1) and (e)(2)].) The first step requires “an objective inquiry, without deference to the movant’s framing or personal motivations.” (Geiser v. Kuhns (2022) 13 Cal.5th 1238, 1254.) The second step permits the introduction of “contextual factors,” such as “speaker, audience, and purpose” to identify the functional relationship between the speech and the public conversation. (Id. at pgs. 1250, 1253.)

Here, Defendant argues that

her “warnings contributed to an active and ongoing discussion among women about Plaintiff’s conduct.” (Motion, PDF pg. 7.) Applying the analysis in *FilmOn.com v. DoubleVerify Inc.*, the Court agrees.

First, Plaintiff’s Complaint

makes the judicial admission that his conduct with women continued to be a topic of public interest after February/March 2024, when “Kayla Hatch and Amie Hatch continued and escalated the campaign by adding new, more extreme accusations beyond the original claims. This became an ongoing smear campaign designed to recruit others, create the appearance of corroboration, and cause reputational and economic harm. The escalated accusations included (among others) mass drugging and rape of Black women (with racial slurs), human trafficking, drug trafficking, theft of government property, fraudulent business practices, falsification of documents, presenting made-up business opportunities to sexually exploit women, and claims that Plaintiff was dishonorably discharged for these alleged crimes.” (Complaint at pg. 3:16-23, emphasis added.)

Second, Defendant’s

statement, “GIRLS PLS KEEP COMING FORWARD!!! WE ARE IN THIS TOGETHER!!” along the top of an anonymous account’s post with Plaintiff’s face and three red flag emojis contributes to the pre-existing conversation regarding Plaintiff’s conduct. (See Decl. of Fuller ¶15, Exh. 1.) The speech at issue encouraged other women to provide accounts of their personal experiences with Plaintiff. Therefore, the speech at issue constitutes a statement is made in connection with an issue of public interest under the *FilmOn.com* test.

Each cause of action in the Complaint

is predicated on Defendant’s “Instagram content” (Complaint ¶¶15, 25) and her “false statements” (Complaint ¶¶20, 21). The gravamen of the Complaint targets Defendant’s statements made in a place open to the public or a public forum in connection with an issue of public interest.

Therefore, Defendant met her

burden on Prong 1 as to alleged conduct pertaining to Defendant’s statements made in a place open to the public or a public forum in connection with an issue of public interest. The burden shifts to Plaintiff to demonstrate a probability of prevailing on his causes of action.

Prong

Two: Probability of Prevailing

A party opposing a special motion to strike has the burden to “state [] and substantiate [] a legally sufficient claim.” (Navellier, 29 Cal.4th at pgs. 88 & 93.) “Put another way, the [opposing party] “must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the defendant is credited.” [Citations.]” (Id. at pgs. 88-89.) To that end, the opposing party must present competent evidence, “that would be admissible at trial.” (HMS Capital, Inc., 118 Cal.App.4th at pg. 212.) “[D]eclarations may not be based upon ‘information and belief’ [citation]” and documents submitted without the proper foundation will not be considered. (Id.)

1.

Defamation-
Libel (1st COA)

“The elements of a defamation claim are (1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or causes special damage. ‘In general, ... a written communication that is false, that is not protected by any privilege, and that exposes a person to contempt or ridicule or certain other reputational injuries, constitutes libel.’ The defamatory statement must specifically refer to, or be “of [or] concerning,” the plaintiff.” (Jackson v. Mayweather (2017) 10 Cal.App.5th 1240, 1259, internal citations omitted.)

“A statement is defamatory when it tends ‘directly to injure [a person] in respect to [that person’s] office, profession, trade or business, either by imputing to [the person] general disqualification in those respects which the office or other occupation peculiarly requires, or by imputing something with reference to [the person’s] office, profession, trade, or business that has a natural tendency to lessen its profits.’” (Issa v. Applegate (2019) 31 Cal.App.5th 689, 702, internal citation omitted.)

“In determining whether a

statement is libelous we look to what is explicitly stated as well as what insinuation and implication can be reasonably drawn from the communication.” (Id. at pg. 703, internal citation omitted.) “[I]f the defendant juxtaposes [a] series of facts so as to imply a defamatory connection between them, or [otherwise] creates a defamatory implication . . . he may be held responsible for the defamatory implication, . . . even though the particular facts are correct.” (Id.) “The ‘pertinent question’ is whether a ‘reasonable fact finder’ could conclude that the statements ‘as a whole, or any of its parts, directly made or sufficiently implied a false assertion of defamatory fact that tended to injure’ plaintiff’s reputation.” (Id.)

“We apply a ‘totality of the circumstances’ test to determine whether a statement is fact or opinion, and whether a statement declares or implies a provably false factual assertion; that is, courts look to the words of the statement itself and the context in which the statement was made.” (Id.)

As with summary judgment motions, a court ruling on an anti-SLAPP motion must consider both the “supporting and opposing affidavits.” (C.C.P. §425.16(b)(2)). Thus, gaps in plaintiff’s showing of a “probability of success on the merits” may be filled by defendant’s evidence. (*Salma v. Capon* (2008) 161 Cal.App.4th 1275, 1289.)

Plaintiff alleges Defendant’s Instagram content constitutes libel, exposing Plaintiff to hatred, contempt, ridicule, or obloquy and injuring him in his occupation. (Complaint ¶15.) Plaintiff alleges Defendant is liable for publishing statements induced by Kayla Hatch and her sister’s slander. (Complaint ¶15.)

Plaintiff alleges Defendant acted with actual malice—either knowing the statements were false or acting with reckless disregard for their truth—given her intimate knowledge of Plaintiff’s business and failure to verify or confront Plaintiff before publishing. (Complaint ¶17.)

Plaintiff alleges that as a proximate result, Plaintiff has suffered general damages (reputation, shame, hurt feelings) of at least \$500,000, special damages exceeding \$170,000, and is entitled to exemplary damages.

(Complaint ¶18.)

The totality of the circumstances in which the statement “I am no longer associated with this man. Pls stay safe ladies” was posted by Defendant creates a factual implication. Plaintiff cites to Defendant’s declaration, which states that Defendant came to know Plaintiff “well through both a professional and a personal, intimate relationship,” and had “firsthand knowledge of Plaintiff’s conduct and character.” (Opposition, pg. 16, quoting Decl. of Fuller ¶12.) Defendant’s statement, “Pls stay safe ladies,” implies that Plaintiff is not a safe person to be associated with, and makes a public statement to shared colleagues that she is no longer associated with Plaintiff. Plaintiff’s declaration states, “[t]he Defendant maintains social media accounts with a substantial following. At the time she published, the Defendant and I shared numerous mutual connections on social media, a substantial number of whom were persons from my own professional network to whom I had introduced her.” (Decl. of Johnson ¶20.)

Plaintiff demonstrates a probability of prevailing on the merits of his defamation cause of action because he makes a prima facie demonstration that Defendant’s statement is false. Plaintiff attaches memorandums from various military investigations indicating that his record has been expunged, “all legal, adverse action, and administrative proceedings related to [Case Numbers 07MAR22-INPE00092-6SMA and 17NOV22-MWPE-00596-8MMA] concluded on 6 March 2024,” and that all personal property collected as evidence collected in the course of a military investigation be returned or destroyed. (See Decl. of Johnson ¶¶5-6, Exhs. A, B.) While these records of Plaintiff’s past military record are not directly related to the statements at issue in Plaintiff’s Complaint, they form the basis for Defendant’s belief that “the concerns underlying [her] statements were genuine and reasonably supported by information available to [her] at the time” she made her Instagram posts. (Decl. of Fuller ¶18.)

Much of Defendant’s supporting evidence is not properly authenticated, not judicially noticed (i.e., the exhibits pertaining to Sara Thiel’s restraining order), and were properly objected to by Plaintiff. Under *Sweetwater Union High School v. Gilbane Building Co.* (2019) 6 Cal.5th 931, 949, on Prong 2 of an anti-SLAPP motion, the Court can consider “affidavits, declarations, and their equivalents if it is reasonably possible the proffered evidence set out in those statements will be admissible at trial. Conversely,

if the evidence relied upon cannot be admitted at trial, because it is categorically barred or undisputed factual circumstances show inadmissibility, the court may not consider it in the face of an objection." Because Plaintiff properly objected to this evidence, the Court cannot consider the contents asserted therein.

The only admissible evidence Plaintiff produces responsive to Defendant's concern for her own safety is his declaration that "I have never been charged with any offense involving revenge pornography." (Decl. of Johnson ¶8.) This declaration, coupled with the memorandums from various military investigations indicating that Plaintiff's record has been expunged, that "all legal, adverse action, and administrative proceedings related to [Case Numbers 07MAR22-INPE00092-6SMA and 17NOV22-MWPE-00596-8MMA] concluded on 6 March 2024," and that all personal property collected as evidence collected in the course of a military investigation be returned or destroyed is sufficient to establish that Defendant's statement is false. (See Decl. of Johnson ¶¶5-6, Exhs. A, B.)

Finally, Plaintiff sufficiently demonstrates that Defendant acted with malice or reckless disregard for the truth based on his declaration that "[w]ell before the Defendant published the statements at issue, and during one or more of the conversations described in Paragraphs 13 and 14, I showed her in person the records reflecting the disposition of the investigation, including Exhibits A, B, and C. At no time before December 10, 2025, did the Defendant say to me that she doubted the disposition of the investigation or that she believed any charge remained pending against me." (Decl. of Johnson ¶15.)

Accordingly, Plaintiff meets his burden to establish a probability of prevailing on his defamation cause of action.

2.

Trade

Libel (2nd COA)

"Trade libel is the publication of matter disparaging the quality of another's property, which the publisher should recognize is likely to cause pecuniary loss to the owner.

[Citation.] The tort encompasses 'all false statements concerning the quality of services or product of a business which are intended to cause that business financial harm and in fact do so.' [Citation.] [¶] To constitute trade libel, a statement must be false." (City of Costa Mesa v. D'Alessio Investments, LLC (2013) 214 Cal.App.4th 358, 376.)

"To constitute trade libel the statement must be made with actual malice, that is, with knowledge it was false or with reckless disregard for whether it was true or false." (J-M Manufacturing Co., Inc. v. Phillips & Cohen LLP (2016) 247 Cal.App.4th 87, 97.)

"The distinction between libel and trade libel is that the former concerns the person or reputation of plaintiff and the latter relates to his goods." (Shores v. Chip Steak Co. (1955) 130 Cal.App.2d 627, 630.)

Plaintiff alleges Defendant's false statements disparaged the quality and legitimacy of Plaintiff's business services, falsely implying unethical or illegal operations despite Defendant's direct, extensive knowledge to the contrary. (Complaint ¶13.)

Plaintiff alleges the statements caused specific, identifiable pecuniary loss exceeding \$170,000 "(cancellation of \$70,000 modeling job and \$100,000 promoter trip deal)." (Complaint ¶21.)

For the same reasons stated with regard to Plaintiff's 1st cause of action, Plaintiff meets his burden to establish a probability of prevailing on his trade libel cause of action.

3.

Intentional

Interference with Prospective Economic Advantage (3rd COA)

To state a claim for tortious interference, plaintiff must state facts showing all of the following elements: (1) the existence, between the plaintiff and some third party, of an economic relationship that contains the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) intentionally wrongful acts designed to disrupt the relationship; (4) actual disruption of the

relationship; and (5) economic harm proximately caused by the defendant's action. (Roy Allan Slurry Seal, Inc.

v. American Asphalt South, Inc. (2017) 2 Cal.5th 505, 512.) "The tort's requirements 'presuppose the relationship [actually] existed at the time of the defendant's allegedly tortious acts lest liability be imposed for actually and intentionally disrupting a relationship which has yet

to arise.'" (Id. at pg. 518, citations omitted.)

"[A] plaintiff seeking to recover for an alleged interference with prospective contractual or economic relations must plead and prove as part of its case-in-chief that the defendant not only knowingly interfered with the plaintiff's expectancy, but engaged in conduct that was wrongful by some legal measure other than the fact of interference itself." (Della Penna v. Toyota Motor Sales, U.S.A., Inc. (1995) 11 Cal.4th 376, 393.)

Plaintiff alleges he maintained valuable, probable prospective economic relationships with clients, models, and promoters. (Complaint ¶24.)

Plaintiff alleges Defendant knew or reasonably should have known of these relationships and intentionally disrupted them through her false, malicious Instagram content, causing actual economic harm exceeding \$170,000. (Complaint ¶25.)

Plaintiff alleges Defendant's conduct was independently wrongful (defamation and trade libel). (Complaint ¶26.)

Plaintiff fails to demonstrate a probability of prevailing on his cause of action for intentional interference with prospective economic advantage claim because he failed to demonstrate any evidence of the existence, between the plaintiff and some third party, of an economic relationship that contains the probability of future economic benefit to the plaintiff.

Plaintiff merely produces his own declaration that "[p]rior to the publication I operated a management business in the entertainment and modeling industry. A confirmed booking valued at approximately \$70,000 was canceled on or about December 12, 2025, after the Defendant published the statements at issue. I state this based on my personal knowledge of the booking and its cancellation. The documentation and the identity of the third party are

confidential, and further substantiation of the amount and its cause is among the matters the accompanying motion seeks, including from the Defendant, whose own declaration reflects knowledge of the engagement." (Decl. of Johnson ¶21.) Plaintiff's argument that he cannot provide the requisite proof because it is "confidential" is unavailing; Plaintiff had the opportunity to lodge unredacted copies with this Court in addition to redacted public filings. Plaintiff did not.

Accordingly, Plaintiff failed to meet his burden to establish a probability of prevailing on his intentional interference with prospective economic advantage claim.

Conclusion

Defendant's anti-SLAPP motion is denied as to the 1st and 2nd causes of action and granted as to the 3rd cause of action.

Defendant may separately move for attorneys' fees and costs incurred on the instant motion, as applicable.

(See *Dowling v. Zimmerman* (2001) 85 Cal.App.4th 1400, 1425

["We hold that in order to effectuate the purpose of the anti-SLAPP statute and the Legislature's intent to deter SLAPP suits, a defendant who appears in a SLAPP action in propria persona and later retains specially appearing counsel who successfully brings on behalf of the defendant a special motion to strike the complaint under section 425.16, is entitled to recover an award of reasonable attorney fees under the mandatory provisions of subdivision (c) of that section in order to compensate the retained counsel for the legal services provided in connection with both the special motion to strike, and the recovery of attorney fees and costs under that subdivision."].)

Moving Party to give notice.

Dated: September ____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court

[1] The Court notes Defendant's motion is in violation of CRC, Rule 2.109, which provides that "[e]ach page must be numbered

consecutively at the bottom unless a rule provides otherwise for a particular type of document. The page numbering must begin with the first page and use only Arabic numerals (e.g., 1, 2, 3). The page number may be suppressed and need not appear on the first page.”

(CRC, Rule 2.109.) No page

numbers appear in Defendant’s motion. To

avoid confusion, the Court refers to the page number as it appears sequentially in the PDF filed on the docket.